

25STLC09554 25STLC09554

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-01

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Case Number: 25STLC09554 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE RULING:

In light of the stay of this action, the following hearings
are placed off calendar and may be rescheduled upon the lifting of the stay:

-Plaintiff Elena Berman's Motion to Compel Further
Responses; and Motion for Order Deeming Requests for Admission Admitted, set
for hearing on 07/01/2026.

-Plaintiff Elena Berman's Motion for Order Deeming Requests for
Admission Admitted Pursuant to CCP § 2033.280, set for hearing on 07/16/2026.

-Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and
Associates Inc.'s Motion for Judgment on the Pleadings, set for hearing on
07/28/2026.

Analysis:

Plaintiff Elena Berman ("Plaintiff"), in propria persona,
filed the instant action against Defendants Joel Bauer ("Defendant Joel"),
Cheryl Bauer ("Defendant Cheryl"), and Joel Bauer and Associates Inc. ("Defendant
JB") on December 29, 2025. Defendants filed their Answer on March 3, 2026.

On May 29, 2026, Plaintiff filed the instant Motion to
Compel Further Responses; and Motion for Order Deeming Requests For Admission
Admitted. On June 12, 2026, Defendants filed a Motion to Declare Vexatious
Litigant; in relation to that motion, Defendants filed a Notice of Automatic
Stay on June 24, 2026.

Plaintiff filed a reply in support of the instant Motion to Compel Further Responses; and Motion for Order Deeming Requests for Admission Admitted on June 25, 2026.

Discussion

The Court finds that the instant Motion is stayed in light of Defendants' Motion to Declare Vexatious Litigant, which is brought pursuant to Code of Civil Procedure section 391.1. Section 391.6 expressly provides that "when a motion pursuant to Section 391.1 is filed prior to trial the litigation is stayed ... until 10 days after the motion shall have been denied, or if granted, until 10 days after the required security has been furnished and the moving defendant given written notice thereof." (Code Civ. Proc., § 391.6.) The hearing on the Motion to Declare Vexatious Litigant is set for July 28, 2026. Therefore, the stay is in effect until at least August 7, 2026.

Additionally, the Court notes that Plaintiff improperly filed a combined motion to compel further responses with respect to six separate sets of discovery: (1) Special Interrogatories as to Defendant Joel; (2) Special Interrogatories as to Defendant Cheryl; (3) Special Interrogatories as to Defendant JB; (4) Requests for Production as to Defendant Joel; (5) Requests for Production as to Defendant Cheryl; and (6) Requests for Production as to Defendant JB; and a combined motion to deem requests for admission with respect to three separate sets of discovery: (1) Requests for Admission as to Defendant Joel; (2) Requests for Admission as to Defendant Cheryl; and (3) Requests for Admission as to Defendant JB.

Filing a single motion to compel further responses or to deem admissions admitted with respect to multiple sets of discovery creates the following problems. First, it negatively impacts the Court's calendar by placing more motions on the calendar than slots have been provided by the online reservation system. Second, it results in confusion in the motion papers regarding the arguments and evidence with respect to each set for discovery. Finally, combining multiple discovery sets into a single motion allows the moving party to avoid paying the requisite filing fees. Statutorily required filing fees are jurisdictional and "it is mandatory for the court clerks to demand and receive statutorily required filing fees." (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Although Plaintiff has been granted a fee waiver in this action,

they must still file separate motions addressing each set of discovery as to each separate Defendant, the separate underlying legal basis, and the separate evidence in support thereof. Here, Plaintiff effectively combines nine discovery motions into a single motion.

Conclusion

In light of the stay of this action, the following hearings are placed off calendar and may be rescheduled upon the lifting of the stay:

-Plaintiff Elena Berman's Motion to Compel Further Responses; and Motion for Order Deeming Requests for Admission Admitted, set for hearing on 07/01/2026.

-Plaintiff Elena Berman's Motion for Order Deeming Requests for Admission Admitted Pursuant to CCP § 2033.280, set for hearing on 07/16/2026.

-Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Judgment on the Pleadings, set for hearing on 07/28/2026.

Judicial Assistant to give notice.